

THE CAMBRIDGE
WORLD HISTORY OF

GENOCIDE

VOLUME III

Genocide in the
Contemporary Era, 1914-2020

EDITED BY
BEN KIERNAN, WENDY LOWER,
NORMAN NAIMARK
AND SCOTT STRAUS

GENERAL EDITOR
BEN KIERNAN

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Genocide in Latin America, 1950–2000

DANIEL FEIERSTEIN AND LUCRECIA MOLINARI
(TRANSLATION: DOUGLAS ANDREW TOWN)

Massive state violence in Latin America reached its peak in the twentieth century during the cold war under the National Security Doctrine (NSD). This doctrine provided an ideological justification for dictatorships in the region in the 1960s and 1970s, and even influenced regimes in countries where there was no breakdown of democracy, such as Colombia, Venezuela and Mexico. The NSD identified a new type of enemy – the ‘internal enemy’; a new form of warfare – the counter-insurgency campaign; and a new role for the armed forces – controlling the domestic population.

Through the concept of ‘internal enemy’ this doctrine enabled the state apparatus of repression to be used against the general population. Latin American states used all the resources at their disposal to investigate, control, persecute, discipline, assassinate and eventually ‘disappear’ their citizens, acting as armies of occupation in their own countries.

Background

Each country combined the NSD with its own existing strategies for population control. In this sense, the NSD was a continuation of the widespread persecution of political dissidents in Latin America during the first decades of the twentieth century. Examples include, among others, the massacre of Santa María de Iquique in Chile in 1907, the ‘Tragic Week’ in Argentina in 1919 (together with the repression and mass murder of workers in the south during the 1920s), the massacres on Colombia’s banana plantations in 1928 and the massacre in El Salvador in 1932.¹

The latter case was notable for its sheer scale. In December 1931, General Maximiliano Hernández Martínez came to power in a coup d’état. A month

¹ J. Godio, *Historia del movimiento obrero latinoamericano*, 3 vols. (San José: Nueva Sociedad, 1979–85).

later, an uprising broke out. The government's response was brutal. Numerous military, police and civilian units were sent to the areas where the uprising had taken place. Armed with machine guns, they succeeded in defeating the rebels and crushing the revolt. During the two weeks following the uprising, indiscriminate killings of peasants by military units intensified. In some cases, the order was given to assemble the male population in public squares, with the excuse of handing out safe-conducts. They were then lined up and machine-gunned. The number of dead is uncertain, but various estimates put it at between 10,000 and 30,000. The repression later extended to society as a whole. The fledgling labour movements and unions were suppressed, along with any groups critical of the status quo – both reformers and revolutionaries.² Accounts of what had happened gave rise to a deeply racist and anti-popular sentiment that spread throughout the Central American region.³

The Institutionalisation of a Political Military Block in America (1946–1959)

Just over a decade later, the NSD would turn persecution of the 'internal enemy' into a doctrine and place it firmly in the hands of the military. Conceived in the United States and strongly influenced by the counter-insurgency methods developed by the French in Indochina and Algeria, the NSD underwent a period of 'institutionalisation' (1946–59) after World War Two. This period saw the emergence of legal, doctrinal and institutional tools that gave shape to a hemispheric security system under the leadership of the United States – a system that was to keep a tight rein on the American continent in terms of doctrine and strategy.⁴

The National Security State was signed into law in the United States through the National Security Act (1947). The act identified the Soviet

2 T. P. Anderson, *Matanza: El Salvador's Communist Revolt of 1932* (University of Nebraska Press, 1971); D. Siegel and J. Hacken, 'El Salvador: la nueva visita de la contrainsurgencia', in *Contrainsurgencia, proinsurgencia y antiterrorismo*, ed. M. Klare and P. Kornbluh (Mexico DF: Grijalbo, 1990).

3 C. Figueroa Ibarra, 'Cultura del Terror y Guerra Fría en Guatemala', in *Hasta que la muerte nos separe. Poder y prácticas sociales genocidas en América Latina*, ed. D. Feierstein and G. Levy (La Plata: Ediciones Al Margen, 2004), p. 124.

4 Regarding the relationship between the United States and Latin America during this period (1946–1959), Katz identifies an offensive directed against left-wing forces, support for authoritarian dictatorships, direct US military intervention and lack of economic aid for Latin America. F. Katz, 'La Guerra Fría en América Latina', in *Espejos de la Guerra Fría: México, América Central y el Caribe*, ed. D. Spencer (Mexico: CIESAS, 2004), pp. 19–22.

Union as the main enemy and driving force behind anti-colonial wars and processes of social change, and established a strategy of ‘containment’ to limit the spread of communism. Another legal instrument, the Inter-American Treaty of Reciprocal Assistance (1947), also known as the Rio Treaty or by its Spanish-language acronym TIAR, established the principles of collective solidarity in the face of an extra-continental aggression. With the creation of the Organization of American States, the OAS (1948), continental integration acquired an institutional character.⁵ In the following years, the United States established a series of bilateral treaties with many Latin American countries, which included supplying them with military aid (training, donations of surplus material and loans to buy new equipment).

*Personalism and Discretionality: Massive State Violence in
Dominican Republic, Haiti and Paraguay*

The dictatorships in the Dominican Republic, Haiti and Paraguay concentrated political and military power to a large degree in the hands of one person – a personalistic regime or family dictatorship. Later, professionalisation and bureaucratisation made it increasingly difficult for the armed forces to support hereditary dictatorships. Consequently, these were more common in the first half of the twentieth century – for example, under Maximiliano Hernández Martínez (1931–44) in El Salvador, Jorge Ubico Castañeda (1931–44) in Guatemala and Tiburcio Carías Andino (1933–49) in Honduras. Nevertheless, some dictatorships managed to perpetuate themselves, despite the first great wave of democracy that swept the region after World War Two. Such were the cases of Rafael Leónidas Trujillo (1930–61) in the Dominican Republic, the Duvalier dynasty (1957–86) in Haiti, Alfredo Stroessner (1954–89) in Paraguay and the Somoza dynasty (1937–79) in Nicaragua.

The first of these dictators to come to power was Trujillo in the Dominican Republic. Trujillo used the security forces to terrorise the population. Political opponents were subjected to torture and appalling prison conditions. But that was not all. In 1937, Trujillo ordered the massacre of around 18,000 Haitians living in the Dominican Republic. The case was closed without a hearing after Trujillo paid Haiti compensation for the victims. Although the reasons for the massacre appear to be complex, this event was part of a broader campaign to control agitation among the

5 Francisco Leal Buitrago, ‘La doctrina de Seguridad Nacional: materialización de la Guerra Fría en América del Sur’, *Revista de Estudios Sociales* 15 (2003), 74–87.

country's worst-paid workers: the Haitian sugar-cane workers and the poorest Dominican peasants.⁶ After Trujillo's assassination in 1961, a 'transition' period began in which diverse political groupings appeared and parties multiplied. In 1963, Juan Bosch became the country's first democratically elected president. However, before he could implement his ambitious reform programme, he was ousted by powerful economic sectors in a coup backed by the US Central Intelligence Agency (CIA) and generals loyal to Trujillo. This created enormous discontent. In 1965 a military and civilian rebellion attempted to reinstall Juan Bosch, leading to a civil war. The United States sent Marines to the island to support the anti-Bosch forces and the country was subsequently occupied by the Organization of American States, but this did not end the violence. The open combat continued, followed by a wave of anti-communist terror and guerrilla attacks against officials and members of the security forces. In 1966, Joaquín Balaguer, who had been a civil servant and close collaborator of Trujillo, was elected president in an election marred by violence and intimidation. His presidencies (1966–78 and 1986–96) were a continuation of Trujilloism. In his first years of government, Balaguer sought to eradicate the remaining opposition by setting up paramilitary death squads. Opposition leaders were kidnapped from their workplaces, on the streets, in their homes and even in exile. More than 4,000 Dominicans were murdered. Wide-scale repression only ceased when the leadership of leftist groups had been completely eliminated. However, after the 1974 elections, a selective elimination of opponents continued.⁷

Meanwhile, Haiti fell under the dictatorship of François Duvalier ('Papa Doc') (1957–71) and Jean-Claude Duvalier ('Baby Doc') (1971–86). It is estimated that during the three decades their dynasty lasted, the Duvaliers ordered the deaths of between 20,000 and 30,000 Haitian civilians. Hundreds of thousands more were forced into exile. Much of the repression was carried out by the Tontons Macoutes, civilian militias created to terrorise the population in general and the political opposition in particular. These militias, which became more important numerically than the army itself, have been identified by the Inter-American Commission on Human Rights (IACHR) as the main perpetrators of violations against human rights and political freedoms during the Duvalier era.⁸ After the Baby Doc government,

6 Frank Moya, 'The Dominican Republic since 1930', *The Cambridge History of Latin America*, 12 vols., ed. Leslie Bethell (Cambridge University Press, 1990), vii.

7 Ibid.

8 Human Rights Watch, 'Haiti: thirst for justice – a decade of impunity in Haiti', 1996, www.hrw.org/reports/1996/Haiti.htm.

there was a series of dictatorial governments between 1986 and 1994, with brief bouts of constitutional rule. However, this period was largely a continuation of the Duvalier era, not only because many officials remained in office, but because activities by the Tontons Macoutes continued, as did American aid. The latter was cut back only when human rights violations became too blatant to ignore.

Alfredo Stroessner became president of Paraguay after leading an army coup in 1954. His dictatorship, which lasted from 1954 to 1989, owed its stability to two key institutions: the army and the Colorado Party. The army gave him the military support essential in a dictatorial regime; the Colorado Party provided him with a popular base almost unique for a Latin American dictator. Through the party, Stroessner established a network of territorial control, reaching even the smallest villages. The guerrilla groups that emerged were fought efficiently by the Paraguayan army, which received increased US military aid during the 1960s and 1970s. The army sent almost a thousand military squads to be trained in 'anti-communist' counter-insurgency in the US Army School of the Americas. Brazilian and Argentine military missions also played an important advisory role. By the end of the 1970s the Paraguayan dictatorship had thus become more like the new type of dictatorships that had emerged during that decade. The dictatorship brutally persecuted indigenous peoples. During the 1960s and 1970s, for example, at least 60 per cent of the Aché people were killed. The sale and appropriation of Aché women and children has been recognised in various legal and academic circles as instances of genocide.⁹ However, unlike what happened elsewhere in the region, no clandestine military or police structures were created. There were also no clandestine detention or torture centres.¹⁰ Instead, official police, military, government and civilian facilities were used for this purpose. The Final Report of the Paraguayan Truth and Justice Commission revealed that, during the Stroessner dictatorship, 19,862 people were detained and 18,772 people were tortured. Executions and forced disappearances were less frequent. It is claimed that 59 people were executed and 336 were forcibly

9 R. N. Arens, *Genocide in Paraguay* (Philadelphia: Temple University Press); B. Clavero, R. K. Hitchcock, T. E. Koperski et al., *Los ache del Paraguay: discusión de un genocidio* (Copenhagen: Grupo Internacional de Trabajo sobre Asuntos Indígenas, 2008), among many others.

10 Paraguay Truth and Justice Commission, *Final Report of the Truth and Justice Commission of Paraguay* (2008), www.derechoshumanos.net/lesahumanidad/informes/paraguay/Informe_Comision_Verdad_y_Justicia_Paraguay_Conclusiones_y_Recomendaciones.htm.

disappeared. In addition, 20,818 Paraguayans went into exile because of direct or indirect political persecution.¹¹

Doctrinal Update: The Diffusion of the Concept of Internal Enemy (1961–1969)

From the 1960s onwards, these ‘traditional’ dictatorships were brought into line with the NSD. The turning point was the proclamation of the socialist nature of the Cuban revolution in 1961. Numerous guerrilla revolts in the Third World showed that the focus on regular Soviet forces that had prevailed in the United States during the previous decade underestimated the political awakening of the masses. The need to secure growing US investments against the risk of social unrest prompted a change in US President Kennedy’s strategy. Thus, the fight against ‘subversive insurgency’ acquired the same importance as conventional warfare.

Accordingly, the NSD was updated and the role of the Latin American armed forces was redefined. The common defence against a foreign aggression proposed by the Rio Treaty was replaced by the specialisation of each country’s forces in internal security and the fight against ‘subversion’. By guaranteeing order on the ‘internal front’, Latin American armed forces would contribute directly to the security of the ‘free world’ since Kennedy was convinced that the USSR would use decolonisation processes to expand its area of influence.

Specialisation in internal security required a retraining of Latin America’s military forces. In 1963, the United States Southern Command (South Com) accordingly moved to the Panama Canal Zone. In addition to co-ordinating military assistance programmes, military activities and intelligence from the very heart of the continent, the South Com became the epicentre for spreading the counter-insurgency doctrine. Under its jurisdiction were the 8th Special Force (Green Berets) and the US Army School of the Americas (USARSA), in which thousands of Latin American officers took courses. The School of the Americas was founded to ‘provide training to Latin American personnel chosen to achieve higher levels of professionalism, better training in the maintenance of internal security, and greater military collaboration in national development’.¹² It was also the most important training ground for

11 Ibid. See also A. Boccia Paz and B. N. Farina, *El Paraguay bajo el stonismo 1954–1989*, Colección La Gran Historia del Paraguay (Asunción: Editorial El Lector, 2010).

12 Brochure, Department of the Army. Headquarters of the School of the Americas (1975), in Michael Klare and Nancy Klein, *Armas y Poder en América Latina* (Mexico: ERA, 1978).

counter-insurgency operations in Latin America and the only US military school that exclusively housed Latin American military staff. Many of these students would play key roles in the coups in Latin America in the following years.¹³

The NSD showed a clear French influence and included some important innovations. First, it abolished the distinction between violence and non-violence. Security was to be achieved by any means, violent or non-violent: the end justified the means, even if these eroded constitutional guarantees. Second, it blurred the distinction between internal and external enemies. Third, it also blurred the distinction between preventive and repressive violence. Thus, while the traditional doctrine tried to limit the use of armed force when faced with a specific situation of aggression, the NSD defended the need to act in defence of national interests even when threats were only 'potential'.¹⁴ This was the context in which numerous coups d'état took place in Latin America, such as the 1961 coup in El Salvador; the 1962 coups in Argentina and Peru; the 1963 coups in Guatemala, Ecuador, the Dominican Republic and Honduras; the 1964 coups in Brazil and Bolivia; the 1966 coup in Argentina; and the 1968 coups in Peru and Panama.

Developmentalism and Social Disciplining: Massive State Violence in Brazil

The launching of a vast economic aid programme, the Alliance for Progress, was crucial in strengthening relations between Latin American countries and the United States. The programme was based on the notion that adverse socio-economic conditions (such as hunger, illiteracy and unequal distribution of land) were a breeding ground for radical ideologies. Therefore, development was directly related to security, and so to the armed forces of each country. The differences are obvious if we compare Peru (whose 'revolution from above' saw development as a prerequisite for security) with Chile or Argentina (where development was practically absent and the economy was run on neoliberal lines).

One military dictatorship that emphasised development was Brazil's (1964–85). It was also the first Latin American dictatorship to openly embrace the NSD, which it did under the official name of Doctrine of National Security and Development. At the repressive level, this military regime used several

13 Klare and Klein, *Armas y Poder en América Latina*; Lesley Gill, *The School of the Americas: Military Training and Political Violence in the Americas* (Durham and London: Duke University Press, 2004).

14 José Comblin, *El poder militar en América Latina* (Salamanca: Ediciones Sígueme, 1978).

different strategies. The promulgation in 1968 of Institutional Act No. 5 (AI-5) marked a hardening of the regime, giving the government unlimited powers of exception and reinforcing control in the so-called psycho-social area (increased press censorship and control of universities and political organisations). The regime was also characterised by its sophisticated network for collecting and analysing intelligence on subversion. The Department of Information Operations – Centre for Internal Defense Operations (DOI-CODI) was in charge of arresting and torturing so-called subversives, while another sector analysed the information obtained (often under torture) and guided the actions of other agencies. The CODI – DOI included the political police. The National Truth Commission estimated in 2014 that 430 people were killed or disappeared between 1964 and 1985.¹⁵ During this period in which the Brazilian military ran the country, the so-called ‘Brazilian miracle’ took place, laying the foundations for Brazil’s current industrial prosperity.

New Interventionism and Local Empowerment (1969–1977)

Towards the end of the decade, however, the new US president, Richard Nixon (1969–74), saw the existing strategy begin to crumble. Public rejection of the counter-insurgency doctrine (especially US intervention abroad) was growing; the limited social reforms proposed by the Alliance for Progress (ALPRO) to counteract the Cuban Revolution were tolerated by military leaders, but resisted by large local and international economic groups; and bourgeois liberal regimes were incapable of stemming the rise of revolutionary and popular forces. This situation was accompanied by a perpetual need to guarantee the uninterrupted profitability of US investments in Latin America; the continuous supply of raw materials and cheap labour; and access to markets and military bases.

The new strategy guidelines were laid out in the Rockefeller Report (1969), which states that the military is ‘the essential force of constructive social change’ and that ‘the problem is less one of democracy or a lack of it, than it is simply of orderly ways of getting along’. The report suggests that the United States should forget ‘the philosophical disagreements it may have with the nature of particular regimes’ and extend aid to military governments in trouble in several Latin American countries. In short, it promotes a policy

¹⁵ National Truth Commission, <http://cnv.memoriasreveladas.gov.br/>

of widespread military aid and training of military and police personnel with the aim of discouraging Cuban-style revolution.¹⁶ The ‘Nixon Doctrine’ raised the need to strengthen regimes considered pro-American and prepare them – through the Military Assistance Program (MAP), arms sales and training – to police the region. Given widespread opposition in the United States to direct intervention following the Vietnam War, attempts would be made to strengthen local capabilities.

This new approach was reflected in the wave of dictatorships that swept Latin America in the 1970s. Repression was considerably bloodier than before and was mostly carried out by local forces. The coups of 1971 in Bolivia, 1973 in Uruguay, 1973 in Chile and 1976 in Argentina, are typical of this new period.

*Terror and Disappearance: Massive State Violence
in Argentina, Chile, Uruguay and Bolivia*

One of the distinguishing features of the dictatorships of this period was their ‘institutional’ nature. Unlike the personalist dictatorships common in the Caribbean and Central America in the first half of the twentieth century, the armed forces governed as an institution. Rules of governance and succession were established. These dictatorships focused on fighting internal subversion and armed revolutionary struggle in a context of popular agitation. They were especially afraid of any mobilisation of the working class. It should be noted, however, that these dictatorships were not simply repressive: they also had a foundational mission, seeking to bring about a new sociopolitical order. This explains their protracted nature, their concern with justifying themselves ideologically and the harshness of their repressive methods, which represented both a qualitative and quantitative leap in human rights violations.¹⁷

The first of these dictatorships appeared in Bolivia (1971–8). Alleging a ‘red threat’ and the need for security, General Hugo Banzer dissolved political parties and unions, assassinated opponents and militarised the mines. Journalistic sources and associations of victims’ families estimate that approximately 500 people died or disappeared, 14,750 were imprisoned and 19,140 went into exile. A non-governmental tribunal, the Second Russell Tribunal, ruled that the Bolivian authorities were ‘guilty of serious, repeated

16 Nelson A. Rockefeller, ‘Quality of life in the Americas: Report of a U.S. Presidential Mission for the Western Hemisphere’, *State Department Bulletin*, 61 (8 December 1969), pp. 502–15, cited in Klare and Klein, *Armas y Poder en América Latina*.

17 Waldo Ansaldi and Verónica Giordano, *América Latina. La construcción del orden*, 2 vols. (Buenos Aires: Ariel, 2012), 11.

and systematic violations of human rights'. In a report published in 1976, the chief trade union federation in Bolivia, the Central Obrera Boliviana, described the methods of torture used and the proliferation of concentration camps during that period.¹⁸

If Bolivia's dictatorship was brutal, the violence and cruelty of those who seized power in Chile in September 1973 shocked the world. Both the ferocious repression and economic measures it implemented show that the military were not simply intent on undoing the economic and social reforms propitiated by the socialist government of Salvador Allende (1970–3). Brutal economic adjustments accompanied by harsh repression helped deactivate social, political and economic demands and hindered any kind of trade union, political or collective action to the point of almost eliminating them altogether. In terms of repression, Allende's death was followed by the murder of leaders of workers' parties and 'clean-up operations' in factories and poor neighbourhoods. Around 80,000 people were arrested in the first six months.¹⁹ The most important agency within the Chilean repressive system was the National Intelligence Directorate (DINA). This was a powerful secret police under Pinochet's personal control. By 1977, its director, General Manuel Contreras, commanded an army of more than 9,000 agents and a much larger network of informants. The power held by the DINA is evident in its assassination attempts on prominent Chileans abroad, two of which were successful. The toll of victims is much disputed, but there is some consensus around the figure of 3,200 disappeared. The total number of victims (including disappeared detainees, political executions, victims of political violence and torture, and political prisoners) is between 40,000 and 100,000.²⁰

Like Chile, Uruguay had a long tradition of political stability. At the beginning of the dictatorship (which lasted from 1973 to 1985), the military did not exercise power directly. Instead, a civilian president acted as head of

18 Stella Calloni, *Los años del lobo: Operación Cóndor* (Buenos Aires: Ediciones Continente, 1999), p. 157; 'Repression in Latin America: a report on the first session of the second Russell Tribunal', ed. and trans. William Jerman (Rome, April 1974).

19 Alan Angell, 'Chile 1958–c.1990', in *The Cambridge History of Latin America*: 12 vols., ed. Leslie Bethell (Cambridge University Press, 1995), xv.

20 Report of the Presidential Advisory Commission for the Identification of Disappeared Detainees, Persons Executed for Political Reasons, Political Prisoners and Victims of Torture, www.indh.cl/wp-content/uploads/2011/10/Informe2011.pdf. See also the Communiqué by CODEPU (Corporation for the Promotion and Defence of People's Rights), 'CODEPU: A 41 años del Golpe de Estado en Chile, la herida sigue abierta', www.codepu.cl/codepu-a-41-anos-del-golpe-de-estado-en-chile-la-herida-sigue-abierta/.

government, a figure over whom they exerted considerable influence. By 1971 the ‘anti-subversive struggle’ was in the hands of the armed forces. In 1972, the country was declared to be in ‘a state of internal warfare’ and a ‘Law on State Security and Public Order’ was passed, limiting civil liberties, broadening the scope of military action and intensifying repressive operations. As a result, by September 1972 the Uruguayan urban guerrilla group, Tupamaros National Liberation Movement, had been practically dismantled. The definitive breakdown of democratic order took place in June 1973, when President Bordaberry dissolved Congress, suspended the Constitution, and ruled by decree as a military-sponsored dictator. From then on, Uruguay underwent widespread political repression, persecution and detention of trade unionists and political figures from all parties. At the height of the repression, the country had the highest ratio of political prisoners to population in the world. Disappearances totalled around 170 cases and political prisoners numbered around 6,000.²¹

In 1976, a military coup installed the last dictatorship in Argentina. Like its Chilean counterpart, this dictatorship was characterised by a neoliberal economic orientation – of which the disappeared journalist Rodolfo Walsh gave an early account in his ‘Open Letter from a Writer to the Military Junta’.²² This orientation distinguished it from earlier Argentine dictatorial processes. Another distinctive feature of the last Argentine dictatorship was its creation of a new figure: the ‘subversive criminal’. Large numbers of people were subjected to kidnapping, torture and subsequent release, or murder and disappearance. It was a system that would be copied more or less directly in several Latin American countries. The Argentine approach was distinguished by systematic repression and extermination in an extensive network of clandestine detention centres (more than 700 throughout Argentina).²³ Also significant was the practice of stealing babies and giving them new identities. Of an estimated 500 missing children, more than 100 have currently been reunited with relatives.²⁴

21 Servicio Paz y Justicia Uruguay, *Uruguay Nunca Más. Informe sobre la violación a los derechos humanos (1972–1985)* (Montevideo: SERPAJ, 1989).

22 Rodolfo Walsh, ‘Carta abierta de un escritor a la Junta Militar’, 24 March 1977, http://conti.derhuman.jus.gov.ar/_pdf/serie_1_walsh.pdf. For an analysis of the objectives and economic consequences of the last military dictatorship, see Daniel Azpiazu, Eduardo M. Basualdo and Miguel Khavisse, *El Nuevo poder económico en la Argentina de los años 80* (Buenos Aires: Siglo XXI, 2004).

23 For details, see Pilar Calveiro, *Poder y desaparición: los campos de concentración en Argentina* (Buenos Aires: Colihue, 2006).

24 According to estimates by the organisation Abuelas de Plaza de Mayo, www.abuelas.org.ar/.

The Argentine case was characterised by the development of a powerful intelligence network that operated clandestinely and was, to a large degree, independent from the legal repressive apparatus. Intelligence Battalion 601, made up of around 4,000 civilian agents, was responsible for 'exporting' the Argentine modus operandi to Central America.²⁵ It also played a key role in designing the Condor Plan, a formal system to co-ordinate repression among the countries of the Southern Cone that operated from the mid-1970s until the early 1980s.

The armed forces called this dark period in Argentina's history the 'National Reorganization Process', in accordance with their intention of transforming the values and identity of the Argentine people as a whole. It is a label that accurately reflects the profound social, economic and political transformation of Argentine society they brought about by terror. The number of murders through forced disappearances has been documented at around 13,000 although many human rights organisations and researchers estimate the total number of victims (murdered, disappeared, kidnapped children and survivors of concentration camps) close to 30,000 people.²⁶

Changes in the Relationship with the United States (1977–1981)

The 'success' of the Southern Cone dictatorships in eliminating the internal enemy and imposing social discipline in the 1970s was crucial in disseminating the new counter-insurgency techniques. The extraordinary results of the repressive strategy developed in Argentina allowed the military of that country to 'export' their know-how. This occurred in 1980 in the so-called Cocaine Coup in Bolivia, supposedly financed by drug trafficking.²⁷ With the assistance of Argentine military advisors, a campaign of state violence was unleashed in Bolivia, in which 1,500 are known to have been murdered and 2,500 tortured. The main leaders of the trade union movement, political parties and opposition civil and religious organisations were eliminated.²⁸

25 Ariel Armony, *Argentina, the United States and the Anti-communist Crusade in Central America, 1977–1984* (Athens, OH: Ohio University Center for International Studies, 1997). See also Julieta Rostica, *La colaboración de la dictadura militar argentina en la «lucha contrasubversiva» en Guatemala (1976–1981)* (Guatemala: Instituto de Estudios Comparados en Ciencias Penales de Guatemala, 2021).

26 Comisión Nacional sobre la Desaparición de Personas, *Nunca más. Informe de la Comisión Nacional sobre la Desaparición de Personas. Conmemorativa a 40 años del golpe de Estado de 1976* (Buenos Aires: EUDEBA, 2016).

27 Armony, *Argentina, the United States and the Anti-communist Crusade*.

28 Ansaldi and Giordano, *América Latina*, 11.

The support that the Bolivian dictators received from their peers in the Southern Cone was crucial, given that by then US support had waned.

By the mid-1970s, the repeated and blatant human rights violations carried out by these dictatorships forced the United States to condemn them to some extent. President Carter (1977–81) attempted to overcome the ‘excessive fear of communism’ and link US economic aid to respect for human rights. In this context – and presumably thanks to funding provided by the Bolivian ‘adventure’ – Argentine military advisors were sent to countries such as Honduras, El Salvador and Guatemala. Although short-lived, Argentina’s military adventure abroad left a deep mark. Argentina’s lessons in the fight against urban armed organisations, ‘interrogation’ techniques and general intelligence development were to prove crucial in the coming decade.

‘America Is Back’ (1981–1989)

The Nicaraguan revolution in 1979 was a watershed in US–Latin American relations. It became the focus for widespread criticism of Carter’s foreign policy and renewed interventionism. After Reagan became president in 1981, a group of military advisors imposed the idea that the Soviet Union’s influence was expanding.²⁹ This led a reversal from the policy of détente that had begun in 1979 and an escalation of the cold war together with the emergence of a new strategy: the Low Intensity War (LIW). The notion of LIW arose from a theoretical division of armed struggle into three levels: high (global conflagrations such as World War One and World War Two, or hostilities where nuclear weapons might be used); medium (regional confrontations where battlefield weapons are used); and low (guerrilla warfare and other small unit engagements and unconventional warfare). LIW comprised a wide variety of political and military operations (both open and covert) organised into programmes that combined economic aid, psychological operations and security measures.³⁰ The development of LIW marked a renewed commitment to use force against ‘unfriendly’ movements and governments in the Third World, particularly in the region which, at that time, was considered the most conflictive because of the fear of communism: Central America.³¹

29 Introduction to ‘Documento Santa Fe I’. For details and commentaries, see Gregorio Selser, *El Documento de Santa Fe, Reagan y los Derechos Humanos* (Mexico: Alpa Corral, 1988).

30 M. Klare and P. Kornbluh (eds.), *Contrainsurgencia, proinsurgencia y antiterrorismo* (Grijalbo, 1990).

31 Katz, ‘La Guerra Fría en América Latina’, 24.

*Armed Conflict, Repression and Genocide: Massive State
Violence in El Salvador and Guatemala*

At the beginning of the 1980s, Central America was rife with revolutionary upheavals. Nicaragua presented a serious challenge to the NSD, while the presence of guerrillas in El Salvador and Guatemala raised concerns about a possible 'domino effect'. Central America thus became the testing ground for the new doctrine. The security apparatus of these countries was reorganised and resources for special operations forces such as Green Berets and other elite units were substantially increased. During this period, there was a sharp increase in human rights violations, deaths and disappearances in El Salvador and Guatemala, and a proliferation of economic and political operations to undermine the Sandinista government in Nicaragua.³² The latter seized power after toppling the Somoza dynasty, which had ruled since 1933. In the final years of Somoza's dictatorship, the United States had attempted to impose 'Somocism without Somoza' by maintaining the National Guard. But the anti-Somocist coalition prevailed, in particular, the Sandinista National Liberation Front, which unified several guerrilla fronts and won the support of the popular masses. When Reagan came to power, however, his administration suspended the programme of economic aid that Carter had maintained even after the Sandinista revolution and it brought military pressure to bear. In 1981 it authorised the CIA to carry out secret operations in order to destabilise the Sandinista government and cut off the supply of arms to Salvadoran guerrillas. The CIA organised right-wing groups (the 'contras') made up of former members of Somoza's National Guard, who were joined by volunteers dissatisfied with the revolution (especially the indigenous population on the Atlantic coast). The 'contras' developed a strategy of constant harassment that succeeded in undermining the economic and political foundations of the Sandinista government towards the end of the 1980s.

Honduras played a key role in this strategy. During Carter's administration, it was already the base for repressive operations by Honduras and El Salvador against guerrilla forces in the region. A new intelligence unit was established, the 316th Intelligence Battalion, which was assisted by Argentine advisors who came to the country to train the 'contras'. Starting in 1981, Reagan upped the ante: thousands of soldiers were trained by Americans in the country and numerous US military bases were built.

The longest-lasting conflict, however, was in Guatemala. It originated in the 1954 coup against Jacobo Arbenz, in which a covert CIA operation called

32 Klare and Kornbluh (eds.), *Contrainsurgencia, proinsurgencia y antiterrorism*.

PBSUCCESS ended Guatemala's 'political spring' – the only democratic period until then in the country's history. This coup initiated intermittent outbreaks of repression, known as 'internal armed conflicts', which ended with the signing of the Peace Accord in 1996. Much of the violence unleashed in the period was the result of death squads operating against members of the opposition or suspected members of the opposition. It was mainly the indigenous peoples of the western highlands who suffered the greatest number of deaths. In 1981, large-scale killings began to characterise the repression in this region, resulting in between 11,000 and 13,500 deaths. The strategy involved organising rural militias, called 'Civil Self Defence Patrols'. By 1983, these had recruited around a million armed indigenous civilians. They also had help from the Mobile Military Police, a body organised and equipped by the United States. The military evacuated Indians living in guerrilla strongholds and herded them into 'model villages' (a US policy perfected during the Vietnam War). Ríos Montt (president between 1982 and 1983) developed the Victoria 82 plan to eliminate guerrilla groups and populations that provided them with any type of support. During his government, murders increased from a monthly toll of 800 to 6,000 cases per month.³³ Between 1981 and 1983, 440 villages were razed to the ground and nearly 100,000 people were killed.³⁴ According to the Guatemalan Church in exile, between 1980 and 1986, 250 massacres were carried out, the dead being buried in mass graves. The report of the resulting Commission for Historical Clarification, published in 1999 with the support of the United Nations, revealed that more than 200,000 Guatemalans lost their lives, including 40,000 forced disappearances and 669 cases of multiple murders or massacres (i.e. with more than five simultaneous victims).³⁵

El Salvador also saw large numbers of deaths and disappearances. After half a century of military governments (some of them with a democratic facade), massive state violence took a new leap at the end of the 1970s. The zeal of the 'death squads' reached an unprecedented level with the assassination of Archbishop Oscar Romero in March 1980, which marked the beginning of El Salvador's civil war (1980–92). Five guerrilla groups formed a powerful front (the Farabundo Martí National Liberation Front) to fight

33 Marc Drouin, 'To the last seed: atrocity crimes and the genocidal continuum in Guatemala, 1978–1984' (Masters thesis, Concordia University, 2006).

34 Carlos Figueroa Ibarra, 'Genocidio y terrorismo de Estado en Guatemala (1954–1996). Una interpretación', *Revista de Estudios sobre Genocidio* 1 (2007), 68–89; and James Cockcroft, *Latin America: History, Politics, and U.S. Policy*, 2nd ed. (Belmont: Wadsworth/International Thomson Publishing, 1998).

35 Drouin, 'To the last seed'.

against the Salvadoran army. The first period of the civil war included US support for the armed forces and the carrying out of repeated massacres. Killing reached a peak between 1980 and 1983, with around 38,000 victims, the massacre in and around El Mozote in 1981 being one of the bloodiest.³⁶ The following years, the number of deaths decreased and the strengthening of the guerrillas led to a more conventional type of warfare. The military stalemate concluded with the signing of the Chapultepec Peace Accords in 1992. The total number of deaths in the Salvadoran Civil War was around 80,000. The UN Truth Commission identified sixty-two officers (forty-seven of whom had been trained in Panama) as responsible for the worst killings, and accused the Atlacatl battalion – ‘the pride of the United States military’ – of major killings.³⁷ The Commission determined that the army had been responsible for 85% of deaths during the war, the guerrillas for 10% and the remaining 5% could not be categorised.³⁸

Massive State Violence under Civil Regimes: Colombia, Mexico and Peru (the Prolongation of New Logics in the Twenty-First century)

The last decade of the twentieth century saw the disappearance of the Soviet Union and the consequent weakening of alternatives to capitalism. Towards the middle of the decade, Central American countries that had suffered decades of armed conflicts, watched the long-awaited peace agreements materialise as Latin America embarked on a process of transition and democratic consolidation. High expectations surrounded these young democracies, which were called upon to respond not only to all the demands postponed during decades of political conflicts, but also to new challenges, including organised crime and drug trafficking. The measures taken by Latin American states to meet these challenges were constrained in two ways: they could not be carried out by a regime that was not formally democratic; and they depended on the resources allowed to the state by the new wave of neoliberalism.

36 Siegel and Hacken, ‘El Salvador’.

37 ‘How U.S. actions helped hide Salvador human rights abuses’, *New York Times*, 21 March 1993.

38 The Commission on the Truth for El Salvador, *From Madness to Hope: The 12-Year War in El Salvador: Report of the Commission on the Truth for El Salvador* (1993), www.usip.org/sites/default/files/file/ElSalvador-Report.pdf.

The problem of organised crime in its present form dates back to at least the end of the 1970s. This is why the ability of Latin American states to combat it was strengthened by their renewed military capabilities under the NSD. One of the first countries where this occurred was Colombia. Colombia's participation in the Korean War (1950–3) led to the spread of counter-insurgency practices that would soon include 'civic action' programmes to integrate civilians in the fight against the 'internal enemy'. These programmes played a key role in the proliferation of paramilitary groups responsible for much of the violence and criminality in Colombia from the mid-twentieth century to the present.

Repression intensified and became more brutal towards the end of the 1970s, when a new security statute was drawn up, granting greater autonomy to the armed forces and loosening civilian controls. State and parastatal violence, both against guerrillas and legitimate political opposition, deepened in the mid-1980s. On the other hand, the Colombian state underestimated the problem of drug trafficking, allowing the cartels to hold considerable power towards the end of that decade. This power was reflected in the cartels' ability – together with that of traders and large landowners – to deploy 'private armies' made up of paramilitaries. These unseen paramilitary groups gradually became more professional and effective. Initially urban, they spread to the countryside, where they confronted the guerrillas indirectly by attacking their support networks among the population. They functioned with the legal support of Law 48 of 1968, which authorised the formation of self-defence groups in line with the doctrine of counter-insurgency. This law was repealed in 1989 and the paramilitaries agreed to demobilise in 2003, although they did not disappear that year.

In 1999, a US government military aid plan (Plan Colombia) was launched with the stated objective of contributing to the country's development through the fight against drug trafficking. In practice, however, the enhanced combat capacity of the security forces brought about by the plan was used particularly to fight the guerrillas (who lost the initiative of armed confrontation after 2002). It also increased the number of massacres and forced displacements of civilians. The Colombian conflict – strongly exacerbated by drug trafficking – remains unresolved with already more than 265,000 people murdered and around 8 million displaced.³⁹

39 Ansaldi and Giordano, *América Latina*, 11; Alejandro Reyes Posada, 'Paramilitares en Colombia: contexto, aliados y consecuencias', in *Pasado y presente de la violencia en Colombia*, ed. González Sanchez and Ricardo Peñaranda (Bogotá: IEPRI, Universidad

Another important and highly topical case is that of Mexico. The assassination by government troops of hundreds of students in the Plaza de las Tres Culturas in Mexico City in October 1968 was a landmark in massive state violence during the cold war. The students were part of an important mass movement that included intellectuals, professionals, workers and housewives and they were protesting peacefully at the time against repression. Never clarified, the event set a precedent for the state's handling of political dissent: repressive violence accompanied by official denial and silence, as in the Corpus Christi massacre of 1971, also directed against students. Here, more than 200 police and secret service agents surrounded a student demonstration to facilitate the massacre carried out by the paramilitary group Los Halcones, in an operation that revealed the close collaboration between this group and the Mexican security forces.⁴⁰ From that moment on, techniques such as forced disappearance, torture, extralegal executions and disappearances began to be integrated into a counter-insurgency strategy that, at least until 1981, included practically unlimited powers for the security forces and the military. The now defunct Federal Security Directorate (FSD) coordinated this action, which targeted political opponents and dissidents. The FSD also created the so-called White Brigade or Special Brigade, in charge of kidnappings and disappearances, and provided many of the facilities where the disappeared detainees were held.⁴¹

The impunity and official silence surrounding these crimes again shook the international community several decades later. In 1994, the Zapatista Army of National Liberation uprising was fiercely repressed, with numerous deaths and disappearances. A lot of massacres were part of Mexican life during the last decade of the twentieth century, like the cases of Aguas Blancas (1995) and Acteal (1997), among many others during the 1990s and the beginning of the twenty-first century. In 2014, forty-three students from a rural teacher training school in Iguala, Guerrero state, disappeared after being attacked by local police in an episode that had already had numerous similar precursors throughout the whole decade. Guerrero, like Chiapas, is one of Mexico's poorest states and has been a prominent target of repression and militarisation since 1960. The year 1971 marked a turning point in state violence against

Nacional, 2009); Unidad para la Atención y la Reparación Integral a las Víctimas, www.unidadvictimas.gov.co/es.

40 Human Rights Watch, *El Cambio Inconcluso. Avances y desaciertos en derechos humanos durante el gobierno de Fox* (New York: Human Rights Watch, 2006).

41 Mexican National Human Rights Commission, *Informe especial sobre las quejas en materia de desapariciones forzadas ocurridas en la década de los 70 y principios de los 80* (Mexico: CNDH, 2001).

the population of Guerrero with the development of the ‘Spider’s Web Plan’. This plan officially approved the technique of forced disappearance for the first time, with the avowed objective of eradicating guerrilla movements from Mexico. However, Guerrero shocked world opinion in 2014 with the disappearance of the forty-three students in Ayotzinapa. State authorities were involved in the students’ disappearance and the Mexican state showed neither the ability nor willingness to clarify the incident, which was not an isolated one. Excavations in the area carried out after intense pressure from relatives of the disappeared students have led to the exhumation of more than 160 bodies buried in clandestine graves, but none of them belong to the students. This situation has been repeated in other Mexican states. The National Human Rights Commission points out that since 2007 more than 1,300 clandestine graves with more than 3,900 bodies have been found. This has led the Mexican authorities to recognise that the country ‘is full of clandestine graves’.⁴²

Of course, many of these crimes are linked to drug-trafficking networks but also to the ‘war’ that the Mexican state has waged against them since 2006. The large-scale deployment of troops to different regions has resulted in the militarisation of the country and the involvement of the armed forces in internal security issues. The lack of effective civilian controls on the actions of these forces is one of the reasons why the ‘war on drugs’ has been accompanied by a ‘generalised resurgence’ of torture, extrajudicial executions and forced disappearances. By October 2018, Human Rights Watch had counted about 240,000 homicides since the beginning of this ‘war’.⁴³

State violence in Peru also peaked under post-cold-war civilian presidencies. After several military interruptions, Peru returned to civilian rule in 1980. Under the governments that followed, neoliberal economic adjustment measures increased (dealing a heavy blow to political opposition organised by the unions, among others). The armed forces were also given control of internal security in view of guerrilla warfare actions against the state by the armed organisation Shining Path, founded in 1970, and an increase in drug trafficking. The strengthening of the military’s capabilities and lack of effective civilian control resulted in a sharp rise in human rights violations. Paramilitary groups related to the army, the Ministry of the Interior and extreme right-wing groups repeatedly carried out constant killings of non-combatant civilians. Peru’s Truth and

42 Human Rights Watch, *El Cambio Inconcluso*.

43 Human Rights Watch, ‘Mexico: lessons from a human rights catastrophe’ (2019), www.hrw.org/blog-feed/mexico-lessons-human-rights-catastrophe.

Reconciliation Commission concluded that approximately 69,280 died or disappeared as a result of the internal conflict in Peru between 1980 and 2000. It found that the peasant population was the main victim of violence and that those who spoke Quechua or other native languages as their mother tongue were also over-represented among the victims. In one of its controversial points, the Commission determined that Shining Path was the principal perpetrator, being responsible for 54 per cent of the deaths (Truth and Reconciliation Commission, Lima: Oficina de Comunicaciones e Impacto Público, 2003). This makes the case of Peru significantly different from all of the others analysed in this chapter. An in-depth study would be required to determine why. Unfortunately, there is no space to discuss this topic further within this chapter.

Ways of Understanding Social Practices in the Region

Despite the region-wide pattern of repression described above, most academic work has so far focused on specific countries or sub-regions (Central America, the southern cone of Latin America, the Caribbean). This has limited our understanding of the processes as a whole, independent of local details. It is usual to highlight the involvement of the United States (sometimes direct involvement, as in the Dominican Republic, Grenada or Panama, but generally indirect, as we have seen in many of the other cases) and the role of the School of the Americas in the training of military forces. Nevertheless, both legal and academic approaches have tended to be restricted and it remains a challenge for Genocide Studies to think about the global logic in the region as a whole during the period 1954–89, as well as the transformations the region has undergone since the end of the cold war, especially in Colombia and Mexico. Beyond the specific political and social conflicts in each country, there have been global strategies that – although adapted to and applied differently in each country – have targeted the region as a whole.

Given the continent-wide nature of the events described above, it remains to define this destruction – whether as genocide or crimes against humanity, or massacres – at a continental level. In this sense, a continental toll of the number of victims would make it possible to understand the magnitude of the destruction, which is often obscured when focusing on specific nation-states or territories. But first it is worth examining the legal attempts to judge massive state violence in different national contexts, as well as some attempts

to describe and classify events based on the concepts used in this volume (genocide and extermination).

Legal Actions

Dictatorships in Latin America began to disappear in the 1980s. Since then, progress has been made in bringing cases of massive state violence before the courts. However, the charges and legal proceedings have varied from one country to another and new dictatorships appeared first in Honduras in 2009 and recently in Bolivia with the coup d'état in November 2019.

Regarding the possibility of prosecuting the perpetrators, the Argentine experience has been one of the most significant and twisted. In 1985, shortly after the country's return to democracy, the leading members of Argentina's military juntas were tried on multiple counts of murder, forced disappearance and torture. Although these acts were treated as common crimes, they were recognised as forming part of a systematic attack against the civilian population. However, the trials were interrupted by numerous demands from the military and military uprisings which led to various laws and amnesties in 1986, 1987, 1989 and 1990 that led to the release of all those convicted. Thus, the new decade saw the return of impunity. In spite of this, the unflinching struggle of the human rights movement (which started criminal proceedings abroad, lodged complaints with international organisations and demonstrated outside repressors' homes, among other initiatives) led to court cases being reopened from 1998. At first, these were only for the theft and concealment of babies (excluded from the laws and amnesties mentioned earlier). From 2005, however, both the impunity laws and pardons were repealed, and declared unconstitutional by the new Supreme Court of Justice. A slew of indictments followed. Since then, the Argentine justice system has convicted 1,306 of those responsible in 227 different legal cases, on two separate offences in law: crimes against humanity and genocide.⁴⁴ The debate about which term is more appropriate remains open. In most cases, the offences were classed as crimes against humanity, but in a significant number (around 20 per cent of the cases and the same percentage of the courts, including cases in different jurisdictions like Buenos Aires, Entre Ríos, Mendoza, Santa Fe, Jujuy, Formosa and San Luis) the term genocide

44 The complete and updated report of the cases can be found in Daniel Feierstein and Malena Silveyra, 'Informe de Sentencias sobre el juzgamiento del genocidio argentino', *Tela de Juicio* 3 (2020), 33–62. The information is updated with the cases until June 2019.

was added, on the grounds that there had been an ‘attempted partial destruction of the Argentine national group’.⁴⁵

In the rest of the region, it has been even more difficult to achieve justice. In Chile, for instance, the process took much longer. It was only after Pinochet was arrested in the UK at the end of 1998 that Chilean courts began to hear complaints. At the end of December 2018, 355 cases had been heard, of which 350 ended in convictions. However, most of the sentences were symbolic, with perpetrators spending only a few years in prison, in contrast to the much longer sentences imposed by Argentine courts. Most convictions during the period 2000–6 were for war crimes since Chile never repealed its amnesty law and a way was needed to get around it. From 2006, however, most sentences were for crimes against humanity or included the term together with that of war crimes. From 2015 (and more frequently since 2018) indictments have also begun to include the term genocide. So far, however, no Chilean judge has used it in sentencing.⁴⁶

Colombia, on the other hand, passed legislation in 2000 to include the attempted destruction of *political* groups within the country’s definition of genocide. This was done in response to a specific process that took place between 1984 and 2002: the systematic persecution, murder and kidnapping of members of the Patriotic Union, a political party made up of former members of the FARC. Regarding the persecution of the Patriotic Union, the Colombian Constitutional Court ratified the use of the term genocide in successive rulings, stating that by restricting its use to certain protected groups, the 1948 Genocide Convention violated Colombian constitutional principles and the relevant paragraphs should be declared ‘unconstitutional’.⁴⁷ In the last years, some Colombian militaries and paramilitaries are being processed, in some cases for the execution of civilians as ‘false positives’ (people killed under the false accusation of being part of a confrontation with insurgent forces) or

45 The analysis of the legal debate can be read in Daniel Feierstein, *Juicios. Sobre la elaboración del genocidio 2* (Buenos Aires: Fondo de Cultura Económica, 2015).

46 Among these indictments is a recent complaint brought by the Socialist Party of Chile for the crime of genocidal illicit association, the trial for the disappearance of José Luis Baeza Cruces and for several cases of torture at the Air War Academy in which the accused were charged with ‘genocidal illicit association’, but could not be convicted for that crime (Case No. 39628–17, 31 October 2018). Although many complaints or sentences mention the Genocide Convention in passing, they do not draw the relevant consequences from this. It should be noted that the Argentine case also began in this way until the courts gradually accepted the term. Thanks go to Francisco Jara Bustos for his update on the situation of the cases before the Chilean justice system.

47 See, e.g., case C-555–17 from the Constitutional Court of Colombia qualifying the annihilation of the members of Unión Patriótica as genocide, among other sentences in the same direction (e.g. C-177–01, C-330–01, C-551–01, C-675–01, C-148–05 and C-488–09).

for their involvement in the creation and functioning of the paramilitary groups, as in the case against Santiago Uribe, the brother of the former President Alvaro Uribe, who is being judged by the Courts of Medellín. And from the thirty-nine cases involving accusations of genocide up to May 2019, there were four sentences with such a charge, three in the jurisdiction of Santander and one in Bogotá.

In Guatemala, the Commission for Historical Clarification was created as part of the peace process. In its 1996 report, it stated that crimes against humanity had been committed together with ‘acts of genocide’, although the latter referred only to indigenous populations. Cases took a long time to come to court and hearings only began after 2002 with the conviction of Colonel Osorio (for the murder of anthropologist Myrna Mack in 1990). For a decade after that, there was a trickle of minor convictions for specific offences, generally classed as common crimes, massacres or forced disappearance of persons. It was not until 2013 that one of the former heads of government (Efraín Ríos Montt) was convicted of crimes against humanity and genocide (the term genocide being used exclusively in cases involving the indigenous population). However, the trial was annulled over supposed technical errors. Since then, three other cases have ended in specific sentences for crimes against humanity, but the judicial process is slow and the number of convictions is pitiful in relation to the magnitude of the events experienced in Guatemala, the case study with the highest number of victims and the highest proportion of them throughout the subcontinent.

In El Salvador, the publication of the Truth Commission Report was accompanied shortly afterwards by an Amnesty Law in 1993. It was not until 2016 that the Supreme Court declared the amnesty unconstitutional. In 2017 the trial began for the El Mozote massacre, in which eighteen members of the Salvadoran high command are accused. The case is currently being tried in the only hearings to have been held so far. However, the Legislative Assembly of El Salvador is preparing a Transitional and Restorative Justice Law that could introduce a new amnesty.

In 2007, former President Fujimori was judged and convicted in Peru to twenty-five years in prison in respect of his responsibility for the massacre of Barrios Altos and La Cantuta, among many other cases under his government (1990–2000). In Uruguay there were also some cases under the ‘crimes against humanity’ label, but of 300 cases opened only 13 resulted in a conviction and the majority of the cases are stagnant.

Ways of Conceptualising the Region's Violent Past

Moving from legal to historical-sociological descriptions, we need to take into account the definitions contained in this volume, and especially extermination as a form of genocide. According to the International Criminal Court's interpretation of the Rome Treaty, Article 7(1)(b), *Crimes against humanity of extermination*, 'The conduct constituted, or took place as part of, a mass killing of members of a civilian population'⁴⁸ and was 'committed as part of a widespread or systematic attack directed against a civilian population'.⁴⁹ Moreover, as the Rome Treaty itself points out, extermination includes not only massacres but, like genocide, also 'the intentional infliction of conditions of life, inter alia the deprivation of access to food and medicine, calculated to bring about the destruction of part of a population'.

From what we have seen in this chapter, it is clear that this definition of extermination applies to both global processes and individual regimes in Latin America. At the global level, there was a plan to exterminate part of the civilian population in the policies developed under the NSD; and this plan materialised in the actions of individual states in Argentina, Bolivia, Brazil, Chile, Colombia, Dominican Republic, El Salvador, Guatemala, Haiti, Mexico, Paraguay, Peru and Uruguay. Moreover, the United States not only conceived the NSD to further its strategic interests; it provided weapons, training and sometimes troops for systematic attacks on civilian populations, while the neoliberal economic policies implemented by the dictatorships it sponsored increased inequality in the region.

In this sense, it may also be useful to analyse these events as 'genocidal social practices', a concept developed in previous works. Genocidal social practices are defined as 'a technology of power that is intended to destroy social relations based on autonomy and cooperation by killing a significant portion of society (significant in size or influence) and that then attempts to create new social relations and identity models through terror'.⁵⁰ This definition focuses on the long-term purpose of destruction

48 Official Records of the Assembly of States Parties to the Rome Statute of the International Criminal Court, First Session, New York, 3–10 September 2002 (United Nations publication, Sales No. E.03.V.2 and corrigendum), Part II.B; Article 7(1)(b) Crime against Humanity of Extermination, www.icc-cpi.int/NR/rdonlyres/336923D8-A6AD-40EC-AD7B-45BF9DE73D56/o/ElementsOfCrimesEng.pdf.

49 Elements of Crimes, www.icc-cpi.int/NR/rdonlyres/336923D8-A6AD-40EC-AD7B-45BF9DE73D56/o/ElementsOfCrimesEng.pdf.

50 Daniel Feierstein, *Genocide as Social Practice: Reorganizing Society under the Nazis and Argentina's Military Juntas*, trans. D. A. Town (New Brunswick: Rutgers University Press, 2014), p. 36.

described earlier: to transform the identity of a group of people, both continent-wide and in each of the territories in which the destruction was implemented.

The problem of how to describe the events inspired by the NSD in Latin America is not, therefore, simply one of deciding which crimes to prosecute. Crimes against humanity (CAH) focus on the materiality of destruction. Because CAH are defined in terms of different acts, regardless their motivation, the long-term effects of these acts remain hidden. In particular, we may be unable to see how terror has transformed the social fabric of a whole region, as well as each national group. In contrast, both the term genocide as used by numerous Argentine courts and some indictments in Chile and Colombia ('partial destruction of the national group') and the category of 'genocidal social practice', which involves a type of historical-sociological analysis, foreground the global nature of the crimes, the intention to destroy and the effects of destruction on the societies of the region. For Raphael Lemkin, creator of the concept, genocide was an attempt to modify the identity of a people. Unfortunately, this cornerstone of his thinking has gradually been forgotten in legal definitions of the term.

Throughout history, genocide has sought to transform the identity of a people through terror. This concept is essential to understanding how and why the NSD was implemented throughout Latin America. Without it, we are left with a catalogue of horrors we will never fully understand.

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More focused analysis is found in the books on the spreading of terror like J. E. Corradi, P. Weiss Fagen and M. A. Garretón (eds.), *Fear at the Edge: State Terror and Resistance in Latin America* (Berkeley: University of California, 1992); the concentration-camp system in Argentina, like Calveiro, *Poder y desaparición*; and the role of paramilitarism like Vilma Franco Restrepo, *Orden contrainsurgente y dominación* (Bogotá: IPC-Siglo del Hombre Editores, 2009).

The international connections in the state violence in America has been developed in Armony, *Argentina, the United States and the Anti-communist*

Crusade in Central America, 1977–1984; J. Patrice McSherry, *Predatory States: Operation Condor and Covert War in Latin America* (Lanham: Rowman & Littlefield Publishers, Inc., 2005); M. Klare and P. Kornbluh (eds.), *Low Intensity Warfare: Counterinsurgency, Proinsurgency and Antiterrorism in the Eighties* (New York: Pantheon Books, 1988); and Gill, *The School of the Americas*. Concerning the role of French counter-insurgency, see M.-M. Robin, *Escadrons de la mort, l'école française* (Paris: Découverte, 2004); and G. Périés, 'De Argelia a la Argentina: estudio comparativo sobre la internacionalización de las doctrinas militares francesa en la lucha anti-subversiva', in *Lucha de clases, guerra civil y genocidio en la Argentina 1973–1983*, ed. I. Izaguirre (Buenos Aires: Eudeba, 2009). Regarding the ideology of right-wing regimes in the region, S. Mcgee Deutsch, *Las Derechas: The Extreme Right in Argentina, Brazil, and Chile, 1890–1939* (Stanford University Press, 1999).

The Genocide Studies field is quite recent in the region. The first use of the concept can be found in the Open Letter to the Argentine Junta written by the journalist Rodolfo Walsh (immediately kidnapped and disappeared after sending the letter) and in the Guatemalan Report (CEH, *Guatemala memoria del silencio. Report by the Guatemalan Historical Clarification Commission* (Washington DC: AAAS Science and Human Rights Program Data Center, 1999). In academia, the concept of genocide has been used to analyse cases like Paraguay – Arens, *Genocide in Paraguay*; Argentina – D. Feierstein, *Genocide as Social Practice: Reorganizing Society under the Nazis and Argentina's Military Juntas* (New Brunswick: Rutgers University Press, 2014 [Spanish ed., 2007]); Colombia – A. Gomez-Suarez, *Genocide, Geopolitics and Transnational Networks: Contextualising the Deconstruction of the Unión Patriótica in Colombia* (New York: Routledge, 2015); and Guatemala – V. Sanford, *Violencia y Genocidio en Guatemala* (Guatemala City: F&G Editores, 2003). A more general view of the whole region can be found in M. Esparza, D. Feierstein and H. R. Huttenbach, *State Violence and Genocide in Latin America* (Routledge: London and New York, 2009).